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JUDGMENT SHEET

LAHORE HIGH COURT

BAHAWALPUR BENCH, BAHAWALPUR

JUDICIAL DEPARTMENT

Criminal Appeal No. 9/2025

Muhammad Siddique

Vs.

The State and another

JUDGMENT

Date of hearing	12.05.2025
For the Appellant:	Syed Zeeshan Haider, Advocate.
For the State:	Ch. Asghar Ali Gill, Deputy Prosecutor General, with Farrukh Zareen/Inspector and Muhammad Zubair/SI, CTD.

Tariq Saleem Sheikh, J. – This appeal is directed against the judgment dated 19.12.2024 delivered by the Judge, Anti-Terrorism Court, Bahawalpur (the “ATC Judge”), in case FIR No.25/2024 dated 21.06.2024 registered at Police Station CTD Bahawalpur.

2. The brief facts of the case are that on 21.06.2024, PW-2 Zubair Ahmad 36/UO (the “Complainant”) and his squad were on duty near Asia Ghee Mills on KLP Road, Bahawalpur. Around 9:45 a.m., he received information from a source that an individual was seen distributing pamphlets and stickers containing sectarian content on Bypass Road, Khanqah Sharif, which also lies along KLP Road. According to the source, the individual was also urging the public to join the proscribed organization, Sipah-e-Sahaba Pakistan (SSP), in contravention of the law. The source added that the perpetrator could be arrested if immediate action was taken. Acting on this information, at 9:55 a.m., the Complainant and his team reached the specified place with the informer and found a man distributing pamphlets and stickers to a group of people who had gathered on the roadside. As soon as the man saw the police party, he attempted to flee while the crowd

dispersed. The Complainant apprehended the man, who identified himself as Muhammad Siddique (the “Appellant”). He checked the brown envelope he was holding in his right hand and recovered 22 pamphlets containing a hate statement against the Shia community along with a picture of Maulana Aurangzeb Farooqi (P-1/1-22) and 17 stickers bearing the slogan “میں نوکر صحابہ دا” and the image of SSP’s flag (P-2/1-17). The Appellant’s personal search yielded a wallet (P-3) containing his CNIC (P-4) and Rs.1120/- in cash (P-5), and a Redmi Note-4 cellphone (P-6). The Complainant secured these items through Recovery Memo Exh. PB. After that, he drafted the complaint Exh. PC and sent it to Police Station CTD, Bahawalpur, through Muhammad Zaigham 799/UO. Based on the said complaint, Mudassar Asghar 795/CPL (PW-1) registered FIR No. 25/2024 (Exh. PA) for offences under sections 9, 11-F(2), 11-G(2), and 11-W(2) of the Anti-Terrorism Act, 1997 (the “ATA”).

3. Muhammad Imran Javed/Inspector (PW-4) investigated the case. On 25.06.2024, he obtained the sealed parcel containing the cellphone from the Moharrar and deposited it the same day at the PFSA Crime Scene Unit, Bahawalpur. On 31.07.2024, he received the forensic report Exh. PG, and a USB (P-7) from the PFSA. He handed them over to Amjad Hussain 1175/UO (PW-3), who retrieved data from the USB and took print-outs P-8/1-14. Subsequently, Amjad Hussain gave the said USB, print-outs, and the PFSA report to the Investigating Officer in the presence of Muhammad Asif 34/UO. During the investigation, PW Muhammad Imran/Inspector found that the Appellant had committed the alleged offence. The report under section 173 Cr.P.C. was submitted accordingly.

4. On 16.11.2024, the ATC Judge indicted the Appellant under sections 9 and 11-G of the ATA. Notably, FIR No. 25/2024 had been registered for offences under sections 9, 11-F(2), 11-G(2), and 11-W(2) of the ATA. The allegations under sections 11-F(2) and 11-W(2) were either dropped or the trial court found that there was insufficient evidence to charge the Appellant for them.

5. The Appellant pleaded not guilty and claimed trial. To prove its case, the prosecution produced four witnesses. Mudassar Asghar 795/CPL (PW-1) registered FIR No.25/2024 Exh. PA. Complainant Zubair Ahmad 36/UO (PW-2) and Amjad Hussain 1175/UO (PW-3) testified regarding the recovery of 22 pamphlets (P-1/1-22) and 17 stickers (P-2/1-17) containing offensive writings, wallet (P-3), CNIC (P-4), Rs.1120/- in cash (P-5), and a Redmi Note-4 cellphone (P-6) from the Appellant. Muhammad Imran/Inspector (PW-4) gave details of his investigation. In documentary evidence, the prosecution *inter alia* adduced the PFSA report Exh. PG.

6. After the prosecution completed its evidence, the ATC Judge recorded the Appellant's statement under section 342 Cr.P.C. and confronted him with the incriminating material brought against him during the trial. The Appellant denied the allegations and professed innocence. He asserted that no incident occurred as alleged in the FIR, that he had no connection with any proscribed organization, and that he neither distributed nor possessed the pamphlets or stickers attributed to him. He termed the alleged recoveries bogus. The Appellant claimed that the CTD officials illegally detained him before the alleged occurrence and later implicated him in this case to cover their misconduct. As for the PFSA report, he submitted that while in custody, the officials had downloaded images of leaders of the banned organization onto a cellphone and then planted it on him to fabricate evidence. The Appellant did not make a statement under section 340(2) Cr.P.C. or produce any witness in his defence.

7. At the conclusion of the trial, vide impugned judgment dated 19.12.2024, the ATC Judge acquitted the Appellant of the charge under section 9 of the ATA but convicted him under section 11-G and sentenced him to rigorous imprisonment for five days.

8. The State has not challenged the Appellant's acquittal under section 9 of the ATA. However, the Appellant has filed this appeal against his conviction under section 11-G. Although he has already undergone the sentence awarded to him, the conviction carries

a stigma and potential legal consequences. Therefore, he seeks to have it set aside through this appeal.

9. Syed Zeeshan Haider, Advocate, contended that the case against the Appellant was false and that the alleged recoveries were planted. According to him, this was evident from serious contradictions in the prosecution evidence. He further argued that the trial court had misconstrued section 11-G of the ATA. The available evidence did not satisfy the statutory elements of the offence. Additionally, the trial court's findings under sections 9 and 11-G were inconsistent: it acquitted the Appellant under section 9 but convicted him under section 11-G on the same evidence without any corroboration. Counsel concluded that the conviction was unsustainable and prayed that the appeal be allowed and the Appellant be acquitted.

10. Ch. Asghar Ali Gill, Deputy Prosecutor General (DPG), opposed the appeal. He submitted that the prosecution had proved its case through reliable evidence. All the prosecution witnesses, particularly Complainant Zubair Ahmad 36/UO (PW-2) and Amjad Hussain 1175/UO (PW-3), in whose presence the offensive pamphlets and stickers were recovered from the Appellant, stood the test of cross-examination. The Appellant could not impeach their credibility. The DPG maintained that the trial court convicted and sentenced the Appellant after properly appreciating the applicable law and the evidence brought on the record. Hence, the appeal was liable to be dismissed.

11. Heard. Record perused.

12. The prosecution sought to prove the allegations in FIR No. 25/2024 through Complainant Zubair Ahmad 36/UO (PW-2) and Amjad Hussain 1175/UO (PW-3). They deposed in line with the FIR and confirmed that on 21.06.2024 at 9:55 a.m., the Appellant was arrested from KLP Road, Bahawalpur, while distributing pamphlets and stickers containing sectarian content and that pamphlets P-1/1-22 and stickers P-2/1-17 were seized from him. However, during cross-examination, the Complainant stated:

“It was my source who disclosed before me regarding the distribution of pamphlets and stickers, but said source is not witness in this case. As per my narration before this Court, the pamphlets and stickers were found in an envelope. No pamphlet or sticker was found in open/visible condition from the hand of accused. I did not mention the number of persons to whom accused was allegedly distributing pamphlets and stickers ... No person joined in the investigation who claimed that accused had distributed pamphlets or stickers to him ... No private person appeared before I.O. in my presence claiming that he had witnessed accused ever distributing stickers or pamphlets of defunct organization for spreading alleged sectarianism. No private person appeared before I.O. in my presence claiming that accused had any link with any defunct organization.”

13. PW Amjad Hussain also conceded that the Appellant was not openly exhibiting the pamphlets or stickers at the time of arrest and that “in our presence, no pamphlet or sticker was distributed by the accused to anyone.” Importantly, the Investigating Officer, Muhammad Imran Javed/Inspector (PW-4), confirmed in his cross-examination that no bystander or member of the public had joined the investigation to claim that he received or witnessed the distribution of the material. He further acknowledged that he relied solely on the statements of the Complainant and PWs for his determination that the Appellant had links with SSP and that no independent evidence was available in that regard.

14. The ATC Judge accepted the prosecution version to the extent of the raid and the recovery of the offensive material from the Appellant. He rejected the Appellant’s defence that the cellphone had been planted and the evidence fabricated.

15. The ATC Judge acquitted the Appellant of the charge under section 9 of the ATA for the following reasons: first, Zubair Ahmad 36/UO (PW-2) and Amjad Hussain 1175/UO (PW-3) confirmed that the hate pamphlets and stickers were recovered from an envelope and were neither in open view nor otherwise visible. Second, they admitted that the Appellant did not distribute hate pamphlets or stickers to anyone in their presence. Third, they had not seen the Appellant engage in any activity linked to a proscribed organization. Fourth, no private person came forward to confirm any such connection. Importantly, the court recorded a categorical finding that the prosecution had failed to prove that the Appellant had

projected, supported, propagated, or promoted SSP or glorified terrorists with intent to incite sectarian hatred.

16. The ATC Judge convicted the Appellant under section 11-G of the ATA on the ground that possession of the objectionable pamphlets (P-1/1-22) and stickers (P-2/1-17) indicated the Appellant's membership and support for SSP. He relied on the material extracted from the Appellant's cellphone (P-6), USB (P-7), and the PFSA report (Exh. PG) to reinforce this inference.

17. The ATC Judge's findings are inconsistent. They raise a critical legal issue: whether the elements required to establish an offence under section 11-G were satisfied in this case. Specifically, whether mere "possession" of offensive material constitutes an offence under section 11-G and, if so, whether it is sufficient to prove that the Appellant was a member or supporter of a proscribed organization. These questions require a closer analysis of the testimonies of the prosecution witnesses, the reasoning of the trial court, and the relevant statutory provisions.

18. We begin with section 8 of the ATA.¹ It prohibits various acts to prevent sectarian hatred. These include using threatening, abusive, or insulting words, behaviour, images, or sounds, as well as displaying, publishing, or distributing material containing such content, and possessing it with a view to its being displayed or published. The offence is complete if either of two conditions is met: first, the person commits the act with the intent to stir up sectarian hatred; or second, in the given circumstances, sectarian hatred is likely to be thereby stirred up. The law thus targets both deliberate

¹ Section 8 of the ATA reads as follows:

- 8. Prohibition of acts intended or likely to stir up sectarian hatred.** – A person who –
- (a) uses threatening, abusive or insulting words or behaviour; or
 - (b) displays, publishes or distributes any written material which is threatening, abusive or insulting; or
 - (c) distributes or shows or plays a recording of visual images or sounds which are threatening, abusive or insulting; or
 - (d) has in his possession written material or a recording or visual images or sounds which are threatening, abusive or insulting with a view to their being displayed or published by himself or another,
- shall be guilty of an offence if –
- (i) he intends thereby to stir up sectarian hatred; or
 - (ii) having regard to all the circumstances, sectarian hatred is likely to be stirred up thereby.

incitement and conduct that creates a real risk of sectarian conflict. Section 9 of the ATA sets out the punishment for committing an offence under section 8. It stipulates that a person who commits such an offence is liable to imprisonment, a fine, or both.

19. Section 11-G(1) of the ATA creates two distinct offences: clause (a) prohibits wearing, carrying, or displaying articles, symbols, flags, or banners associated with a proscribed organization, while clause (b) prohibits wearing or displaying any uniform or item of clothing in circumstances that arouse reasonable suspicion of membership or support of such body. Section 11-G(2) prescribes the punishment for the offence, which may include imprisonment, a fine, or both.²

20. It is noteworthy that although section 8(d) and section 11-G(1) of the ATA both refer to possession or carrying of material linked to sectarian or extremist activity, they criminalize different forms of conduct. Section 8(d) applies to possessing threatening, abusive, or insulting material intended or likely to stir up sectarian hatred. It is content-based and applies only where the material is provocative and held for public dissemination. In contrast, section 11-G(1) is concerned with the visible association of the material with a proscribed organization rather than its content. It penalizes wearing, carrying, or displaying items such as flags, banners, or uniforms linked to such groups, even if they are not abusive or insulting, regardless of intent to incite hatred. Significantly, mere possession does not constitute an offence under either provision. In both cases, criminal liability arises only when further elements are established, such as intent or likely effect under section 8(d) and public display or circumstances giving rise to reasonable suspicion under section 11-G(1).

² Section 11-G of the ATA is reproduced below:

11-G. Uniform.— (1) A person commits an offence if he –

- (a) wears, carries or displays any article, symbol, or any flag or banner connected with or associated with any proscribed organization; or
- (b) carries, wears or displays any uniform, item of clothing or dress in such a way or in such circumstances as to arouse reasonable suspicion that he is a member or supporter of a proscribed organization.

(2) A person who commits an offence under sub-section (1) shall be liable to imprisonment for a term which may extend to five years or with fine or with both.

21. The DPG, however, disagreed with the above interpretation. He submitted that the word “carries” in section 11-G(1)(a) includes possession simpliciter and includes situations where an individual transports the prohibited material in a concealed manner. Referring to the facts of the present case, the DPG contended that since the envelope was in the Appellant’s hand at the time of recovery, it constituted “carrying” within the meaning of section 11-G(1)(a).

22. According to *Black’s Law Dictionary* (9th ed.), the word “carry” has several meanings, including the following: (i) to convey or transport, (ii) to possess and convey (a firearm) in a vehicle, including the locked glove compartment or trunk of a car, (iii) figuratively, to possess or hold (insurance, etc.). However, section 11-G does not use “carries” in isolation. It appears alongside other terms. In such a situation, the maxim *noscitur a sociis* dictates that it must be construed in their light and colour. Bennion explains:

“A statutory term is recognised by its associated words. The Latin maxim *noscitur a sociis* states this contextual principle ... A word or phrase in an enactment must always be construed in the light of the words, and particularly general words, cannot be read in isolation; their colour and their content are derived from their context.”³

23. Crawford states:

“In order to ascertain the meaning of any word or phrase that is ambiguous or susceptible to more than one meaning, the court may properly resort to the other words which the ambiguous word is associated in the statute. Accordingly, if several words are connected by a copulative conjunction, a presumption arises that they are of the same class unless, of course, a contrary intention is indicated.”⁴

24. In ***Bourne (Inspector of Taxes) v. Norwich Crematorium Ltd.*** [1967] 1 WLR 691, at 696, Stamp J. stated:

“English words derive colour from those which surround them. Sentences are not mere collections of words to be taken out of the sentence, defined separately by reference to the dictionary or decided cases, and then put back into the sentence with the meaning which you have assigned to them as separate words ...”

25. The principle of *noscitur a sociis* must be distinguished from the doctrine of *ejusdem generis*, which states that “where general

³ Bennion on Statutory Interpretation (6th ed.), p.1100

⁴ Crawford, *The Construction of Statutes* (2014) pp. 325-326

words follow the designation of particular things or classes of persons or subjects, the general words will usually be construed to include only those persons or things of the same class or general nature as those specifically enumerated. For example, where a law prohibits the exclusion of any persons on account of their color from ‘barber shops, eating houses, or other places of public resort,’ the latter phrase will be restricted to places of the same general character of those specifically enumerated.”⁵. S.M. Zafar states that the two maxims operate in most situations identically, but there is a slight difference between them.⁶

26. The principle of *noscitur a sociis* was judicially recognized in our country in ***Shakeel Shah v. The State and others*** (2022 SCMR 1), ***Barkhurdar v. Appellate Tribunal/Additional District & Sessions Judge, and others*** (PLD 2016 Lahore 101) (FB), ***M/s Asfaq Trading Company v. Collector of Customs*** (2016 PTD 2111), ***Messrs Kashmir Pottery Works v. The Commissioner of Sales Tax*** (PLD 1973 Lahore 837 : 1973 PTD 453).

27. In sub-section (1) of section 11-G of the ATA, the Legislature has used the word “carries” alongside “wears” and “displays” in two distinct clauses. In clause (a), it occurs between “wears” and “displays”, which are followed by the phrase “any article, symbol, or any flag or banner.” In clause (b), the same three words precede the phrase “any uniform, item of clothing, or dress.” Applying the principles discussed above, the word “carries” in section 11-G does not mean mere possession in the general or passive sense but connotes carrying in a way that is visible or suggestive of support or membership of a proscribed organization. It must involve public presentation (such as wearing or displaying emblems, articles, or other material at rallies, group events, or other conduct indicating active affiliation). The prosecution must meet this evidentiary threshold to secure a conviction under section 11-G.

⁵ *ibid.*, pp. 326-327

⁶ S.M. Zafar, *Understanding Statutes* (2nd ed.) p. 665

28. The ATC Judge interpreted section 8 of the ATA in accordance with the statutory language and the evidence on record and, therefore, rightly acquitted the Appellant of the charge under section 9. However, his interpretation of section 11-G was flawed. The Appellant's conviction under that provision rests on a misconstruction of the word "carries".

29. The DPG's argument that since the envelope was in the Appellant's hand at the time of recovery, it constituted "carrying" under section 11-G(1)(a) of the ATA is not tenable. As discussed above, the act of holding an envelope, without more, does not satisfy the statutory threshold of "carrying" under section 11-G(1)(a).

30. Even if the Appellant's act did not amount to "carrying" within the meaning of clause (a) of section 11-G(1) of the ATA, it is still necessary to consider whether his conduct fell within clause (b). That provision does not require proof of actual support or membership of a proscribed organization but turns on whether the circumstances in which an article, item of clothing, or dress is worn, carried, or displayed could arouse a reasonable suspicion of such affiliation. In the present case, the prosecution brought no evidence suggesting that the Appellant was associated with SSP or that any surrounding circumstances could reasonably raise such suspicion. The material was recovered in a concealed form and was not linked to any public display, group event, or act indicative of affiliation. Its mere recovery, without more, was insufficient to meet the requirements of section 11-G(1)(b).

31. The Appellant's conviction under section 11-G of the ATA is also unsustainable because it was based on the same evidence for which he was acquitted under section 9. Once the court found that the material had not been distributed or displayed, was recovered in a concealed form, and was unsupported by corroborating evidence of affiliation, a conviction under section 11-G could not follow.

32. In view of the foregoing, we **accept** this appeal and set aside the impugned judgment dated 19.12.2024. The Appellant is acquitted of the charge under section 11-G of the ATA. Although the sentence awarded to him was short and already served, the conviction

carried potential reputational, legal, and collateral consequences, which have now been removed.

(Raja Ghazanfar Ali Khan)
Judge
Naeem

(Tariq Saleem Sheikh)
Judge

Approved for reporting

(Raja Ghazanfar Ali Khan)
Judge

(Tariq Saleem Sheikh)
Judge